

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG, and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

JOINT MOTION FOR THE EXTENSION OF DEADLINES

Pursuant to 46 C.F.R. §502.69, Complainant One Banana North America Corp. (“One Banana”) and Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) LLC (collectively, “Hapag”) hereby move that the deadlines in this case per the chart attached hereto as Exhibit A. This extension is necessary to allow the parties’ counsel to review the approximately 20,000 pages of documents concerning about 77 containers that could be responsive to the requests for production before beginning to conduct depositions and instruct experts. Compounding the issue is that Complainant’s Relativity provider has been out of service due to a cyber-attack since the beginning of June, as further elaborated on in the letter from the service provider’s counsel attached hereto as Exhibit B.

Pursuant to 46 C.F.R. §502.71, the undersigned has conferred with counsel for Hapag regarding this joint request and has been authorized to represent that counsel for Hapag has no objections as all extensions are reciprocal.

June 17, 2022

Respectfully submitted,

FISHERBROYLES LLP

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Counsel for Respondents
Hapag-Lloyd AG and Hapag-Lloyd
(America) LLC

CERTIFICATION OF SERVICE

I HEREBY CERTIFY that on this 17 June, 2022, the foregoing Motion for Extension of Deadlines was served via electronic mail on:

Wayne R. Rohde (WRohde@cozen.com)

s/Tiffany Compres
Tiffany Compres

EXHIBIT A

Item	Current Deadline	Proposed Deadline
Target for substantial completion of productions of documents and ESI in response to initial RFPs.	May 13, 2022	August 1, 2022
Target for exchange of privilege logs.	May 20, 2022	August 5, 2022
Target to complete depositions of fact witnesses	June 20, 2022	August 31, 2022
Disclosure of initial expert reports.	June 27, 2022	September 9, 2022
Last day to serve discovery requests.	July 5, 2022	September 16, 2022
Disclosure of rebuttal expert reports.	July 15, 2022	September 23, 2022
Complete expert depositions.	July 29, 2022	September 30, 2022
Close of all discovery.	August 8, 2022	October 7, 2022
Complainant's brief, proposed findings of fact, and appendix.	September 7, 2022	November 4, 2022
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	October 5, 2022	December 2, 2022
Complainant's reply brief and responses to proposed findings of fact.	October 20, 2022	December 16, 2022



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June 16, 2022

VIA EMAIL

Tiffany N. Comprés
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Re: IST Management Services, Inc. – Ransomware Incident

Dear Tiffany:

Our law firm represents IST Management Services, Inc. ("IST").

This letter confirms that, as previously reported to FisherBroyles, LLP, IST recently was the victim of a ransomware attack that it discovered on June 4, 2022. As part of its response plan, IST immediately took its systems offline to protect against any further potential malicious activity.

Since that date and through the date of this letter, IST's systems have remained offline while we have carried out an attorney-client privileged investigation of the incident and worked with IST to restore its systems. As a result, FisherBroyles and other impacted customers have not been able to access their case files hosted by IST in Relativity during that time. IST is working as diligently as possible to restore its systems and its customers' access to their data as soon as safely possible, but it does not currently have a definite timeframe when access will be restored. IST will, however, continue to post updates on its website with the most up-to-date information at www.istmanagement.com.

This also confirms that, although its investigation is ongoing and not yet complete, IST does not have evidence at this time indicating that any customer data was taken from its network in connection with this incident. Of course, IST will notify you and other customers if it discovers information to the contrary during its investigation.

IST appreciates your understanding and patience during this process. If you have any other questions for now, please let me know.

Best regards.

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Very truly yours,

FREEMAN MATHIS & GARY, LLP

A handwritten signature in blue ink, appearing to read "D.A. Cole", written in a cursive style.

David A. Cole